

CONDITIONS OF CONTRACT FOR CONSTRUCTION

(FIDIC Red Book 2017 — MDB Harmonised Edition)

Contract No: AHX-2024-CS-001 | Al-Noor Hospital Expansion Project | Abu Dhabi, UAE

EMPLOYER	Al-Noor Medical City LLC, P.O. Box 44821, Abu Dhabi, UAE
CONTRACTOR	Arabian Gulf Construction Co. LLC, Licence No. CN-20819, Abu Dhabi
ENGINEER	Atkins Middle East — Abu Dhabi Office (Contract Administrator)
CONTRACT SUM	AED 14,109,123.00 (Fourteen Million One Hundred Nine Thousand and 123/100)
CONTRACT DATE	01 February 2024
COMPLETION DATE	31 January 2026 (24 months)
DEFECTS NOTIF. PERIOD	365 days from Taking-Over Certificate

Clause 1.1 — Definitions

"Accepted Contract Amount" means the amount accepted in the Letter of Acceptance for the design (if any), execution and completion of the Works and the remedying of any defects, as stated in the Letter of Acceptance (including provisional sums, if any). "Base Date" means the date 28 days before the latest date for submission of the Tender. "Completion Date" means the date stated in the Appendix to Tender for completion of the Works or any Section or Extended Completion Date.

Clause 4.2 — Performance Security

The Contractor shall obtain (at his cost) a Performance Security for proper performance, in the amount and currencies stated in the Appendix to Tender. The Performance Security shall be issued by an entity and from within a country (or other jurisdiction) approved by the Employer, and shall be in the form annexed to the Particular Conditions or in another form approved by the Employer. Amount: 10% of Accepted Contract Amount = AED 1,410,912.30. The Performance Security shall be valid until 28 days after the issue of the Performance Certificate.

Clause 5.0 — Liquidated Damages

If the Contractor fails to comply with Sub-Clause 8.2 [Time for Completion], then the Contractor shall subject to Sub-Clause 2.5 [Employer's Claims] pay liquidated damages to the Employer for this default. These liquidated damages shall be at the rate of AED 25,000 (Twenty-Five Thousand) per day for each day which shall elapse between the relevant Time for Completion and the date stated in the Taking-Over Certificate. The maximum amount of liquidated damages shall not exceed 10% of the Accepted Contract Amount (AED 1,410,912.30). Liquidated damages are not a penalty but are agreed as a genuine pre-estimate of the Employer's likely losses.

Clause 8.3 — Extension of Time for Completion

The Contractor shall be entitled subject to Sub-Clause 20.1 [Contractor's Claims] to an extension of the Time for Completion if and to the extent that completion for the purposes of Sub-Clause 10.1 [Taking Over of the Works and Sections] is or will be delayed by: (a) a Variation or other substantial change in the quantity of an item of work included in the Contract; (b) a cause of delay giving an entitlement to extension of time under a Sub-Clause of these Conditions; (c) exceptionally adverse climatic conditions; (d) Unforeseeable shortages in the availability of personnel or Goods caused by epidemic or governmental actions; or (e) any delay, impediment or prevention caused by or attributable to the Employer, the Employer's Personnel, or the Employer's other contractors on the Site.

Clause 14.3 — Application for Interim Payment Certificates

The Contractor shall submit a Statement in six copies to the Engineer after the end of each month, in a form approved by the Engineer, showing in detail the amounts to which the Contractor considers himself to be entitled. Retention: 10% of each interim payment certificate value to be deducted until Retention reaches 5% of Accepted Contract Amount. Release of Retention: 50% upon issue of Taking-Over Certificate; 50% upon issue of Performance Certificate. Payment terms: Engineer shall issue Interim Payment Certificate within 28 days of receipt; Employer shall make payment within 56 days of receipt of the Contractor's Statement.

Clause 19.1 — Force Majeure

"Force Majeure" means an exceptional event or circumstance which is beyond a Party's control; which such Party could not reasonably have provided against before entering into the Contract; which having arisen, such Party could not reasonably have avoided or overcome; and which is not substantially attributable to the other Party. Force Majeure may include, but is not limited to, exceptional natural catastrophes, explosion or radioactive contamination, pressure waves, war and hostile activities, riot civil commotion or disorder, strikes or lockouts not involving the Contractor's Personnel. [AMBIGUOUS — legal review recommended: The list is illustrative, not exhaustive; determination of FM events requires Engineer's assessment on case-by-case basis.]

FOR AND ON BEHALF OF EMPLOYER	FOR AND ON BEHALF OF CONTRACTOR
Al-Noor Medical City LLC	Arabian Gulf Construction Co. LLC
Signed: _____	Signed: _____
Name: Mr. Khalid Al-Rashidi	Name: Mr. Ravi Shankar Menon
Title: Chief Executive Officer	Title: Managing Director
Date: 01 February 2024	Date: 01 February 2024